

Chapter 270. Zoning

Article V. Uses Permitted and Dimensional Regulations by District

[Amended 4-5-2006 by L.L. No. 3-2006; 2-21-2007 by L.L. No. 1-2007; 1-20-2010 by L.L. No. 1-2010; 8-18-2010 by L.L. No. 5-2010; 7-18-2012 by L.L. No. 3-2012; 8-21-2013 by L.L. No. 5-2013; 1-22-2014 by L.L. No. 1-2014; 7-16-2014 by L.L. No. 2-2014; 10-1-2014 by L.L. No. 7-2014; 5-27-2015 by L.L. No. 2-2015; 2-15-2017 by L.L. No. 3-2017; 12-20-2017 by L.L. No. 13-2017; 7-18-2018 by L.L. No. 2-2018; 12-4-2019 by L.L. No. 7-2019; 2-19-2020 by L.L. No. 3-2020; 11-18-2020 by L.L. No. 17-2020]

§ 270-14. RA Rural Residential and Agricultural District.

The following apply to the RA Rural Residential and Agricultural District:

- A. Purpose: to maintain low-density residential and agricultural development in areas that are considered rural, and to accommodate outdoor recreation facilities and other land uses which are dependent on a rural setting.
- B. Uses permitted by right.
 - (1) Single-family dwellings.
 - (2) Home occupations.
 - (3) Agricultural activities/farms.
 - (4) Roadside produce stands (not exceeding a building footprint of 600 square feet).
 - (5) Cemeteries.
 - (6) Commercial logging.
- C. Uses permitted by site plan review.
 - (1) Churches, synagogues, rectories, and other religious uses and institutions.
 - (2) Personal wireless service facilities.
 - (3) Microbreweries, microwineries and microdistilleries.
- D. Uses permitted by conditional use permit.
 - (1) Two-family dwellings.
 - (2) Bed-and-breakfast establishments.
 - (3) Veterinary clinics, animal hospitals and kennels, and animal training facilities.

- (4) Boarding stables and riding academies.
- (5) Accessory apartments.
- (6) Short-term residential units.
[Added 9-6-2023 by L.L. No. 4-2023]
- E. Uses permitted by conditional use permit which also require site plan review.
 - (1) Hunting/fishing/game clubs.
 - (2) Not-for-profit recreation facilities.
- F. Dimensional regulations. The Table of Dimensional Regulations **is included at the end of this chapter.**

§ 270-15. SR Suburban Residential District.

The following apply to the SR Suburban Residential District:

- A. Purpose: to accommodate relatively dense single-family development, and related uses, in those areas of Glenville where public water is available, where soil conditions are generally favorable for the siting of a septic system and where adequate roads, drainage systems and related infrastructure are already in place.
- B. Uses permitted by right.
 - (1) Single-family dwellings.
 - (2) Home occupations.
 - (3) Cemeteries.
- C. Uses permitted by site plan review.
 - (1) Day-care centers.
 - (2) Churches, synagogues, rectories and other religious uses and institutions.
 - (3) Personal wireless service facilities.
 - (4) Not-for-profit recreation facility.
 - (5) Roadside produce stands located on a county highway and/or on a road with speed limits greater than 30 miles per hour (but not exceeding a building footprint of 600 square feet).
- D. Uses permitted by conditional use permit.
 - (1) Bed-and-breakfast establishments.
- E. Dimensional regulations. The Table of Dimensional Regulations **is included at the end of this chapter.**

§ 270-16. RM Multi-Family Residential District.

The following apply to the RM Multi-Family Residential District:

- A. Purpose: to provide for a form of housing, other than conventional single-family housing, in those areas where multifamily development already exists, or in areas

where infrastructure and services are readily available and can accommodate dense residential growth.

- B. Uses permitted by right.
 - (1) Single-family dwellings.
 - (2) Two-family dwellings.
 - (3) Home occupations.
- C. Uses permitted by site plan review.
 - (1) Expansions to existing multifamily projects and dwellings.
 - (2) Assisted-living facilities.
 - (3) Bed-and-breakfast establishments.
 - (4) Day-care centers.
 - (5) Personal wireless service facilities.
- D. Dimensional regulations. The Table of Dimensional Regulations is **included as an attachment to this chapter**.

§ 270-17. PR Professional Residential District.

The following apply to the PR Professional Residential District:

- A. Purpose: to provide for a compatible mixture of private residences and professional offices in areas currently in transition from residential to commercial, and in areas, particularly along busy roads, where new single-family home development is unlikely to occur. It is further intended that the scale and layout of both new development and converted structures in this district do not significantly increase traffic volumes, nor introduce traffic conflicts via an increase in the number of driveways.
- B. Uses permitted by right.
 - (1) Single-family dwellings.
 - (2) Two-family dwellings.
 - (3) Home occupations.
 - (4) Cemeteries.
- C. Uses permitted by site plan review.
 - (1) Medical offices (i.e., doctors, dentists, chiropractors, psychiatrists, etc.).
 - (2) Law offices.
 - (3) Engineering offices.
 - (4) Architect/landscape architect offices.
 - (5) Accountant/financial planning offices.
 - (6) Real estate offices.
 - (7) Insurance/brokerage offices.

- (8) Instructional services.
 - (9) Computer consultants.
 - (10) Churches, synagogues, rectories and other religious uses and institutions.
 - (11) Day-care centers.
 - (12) Museums.
 - (13) Libraries.
 - (14) Accessory apartments.
 - (15) Bed-and-breakfast establishments.
 - (16) Personal wireless service facilities.
 - (17) Beauty salons and barber shops.
 - (18) Contractor's office.
- D. Dimensional regulations. The Table of Dimensional Regulations is **included as an attachment to this chapter.**

§ 270-18. CB Community Business District.

The following apply to the CB Community Business District:

- A. Purpose: to provide for the basic community services, employment, convenience shopping and recreation for persons residing in nearby residential areas and the local community. It is further intended to provide additional housing opportunities within mixed-use buildings.
- B. Uses permitted by site plan review.
 - (1) Retail businesses, not to exceed 20,000 square feet of gross floor area.
 - (2) Banks, professional, medical, governmental and general offices not to exceed 20,000 square feet of gross floor area.
 - (3) Personal services.
 - (4) Public and private clubs, fraternities and lodges.
 - (5) Day-care centers.
 - (6) Residential dwelling units within the same building as any other use permitted within this district, provided the residence(s) is (are) not located on the ground floor.
 - (7) Bed-and-breakfast establishments.
 - (8) Nurseries, garden shops and florists.
 - (9) Museums.
 - (10) Libraries.
 - (11) Personal wireless service facilities.
 - (12) Microbreweries, microwineries and microdistilleries.

(13) Contractor's offices.

(14) Restaurants, cafes and other eating establishments.
[Amended 9-6-2023 by L.L. No. 4-2023]

C. Uses permitted by conditional use permit which also require site plan review.

(1) Indoor recreation facilities.

D. Dimensional regulations. The Table of Dimensional Regulations is **included as an attachment to this chapter.**

§ 270-19. GB General Business District.

The following apply to the GB General Business District:

A. Purpose: to provide for a wide variety of commercial uses that serve both local and regional needs in those areas where easy access is available, and where residential neighborhoods will not be significantly disturbed.

B. Uses permitted by site plan review.

(1) Retail businesses.

(2) Offices.

(3) Personal and general services.

(4) Public and private clubs, fraternities and lodges.

(5) Museums.

(6) Libraries.

(7) Day-care centers.

(8) Shopping centers.

(9) Indoor and outdoor recreation facilities.

(10) Human services/social services offices.

(11) Hotels, motels, bed-and-breakfast establishments, tourist homes and boardinghouses.

(12) Residential dwelling units within the same building as any other use permitted within this district, provided the residence(s) is (are) not located on the ground floor.

(13) Personal wireless service facilities.

(14) Indoor, outdoor and not-for-profit recreation facilities.

(15) Laundromats.

(16) Microbreweries, microwineries and microdistilleries.

(17) Contractors' offices.

(18) Food and beverage processing and distribution facility not to exceed 10,000 square feet of gross floor area.

(19) Restaurants, food services, taverns and nightclubs.

- C. Uses permitted by conditional use permit.
 - (1) Veterinary clinics, animal training facilities, kennels and animal hospitals with completely enclosed pens or kennels.
- D. Uses permitted by conditional use permit which also require site plan review.
 - (1) Automobile dealerships.
 - (2) Gasoline service stations.
- E. Dimensional regulations. The Table of Dimensional Regulations is **included as an attachment to this chapter**.

§ 270-19.1. HC Highway Commercial District.

The following apply to the HC Highway Commercial District:

- A. Purpose: to establish a hybrid commercial/light industrial zoning district along the western Route 5 corridor of Glenville in an effort to attract a variety of land uses, including those that are best suited for rural highway corridors.
- B. Uses permitted by right.
 - (1) Single-family dwellings.
 - (2) Two-family dwellings.
 - (3) Accessory apartments.
 - (4) Home occupations.
 - (5) Agricultural activities/farms.
 - (6) Cemeteries.
 - (7) Bed-and-breakfast establishments.
 - (8) Professional offices.
 - (9) Instructional services.
- C. Uses permitted by site plan review.
 - (1) Retail businesses.
 - (2) Offices.
 - (3) Restaurants, food services, taverns and nightclubs.
 - (4) Personal and general services.
 - (5) Public and private clubs, fraternities and lodges.
 - (6) Museums.
 - (7) Boarding stables and riding academies.
 - (8) Indoor, outdoor, and not-for-profit recreation facilities.
 - (9) Campgrounds.
 - (10) RV parks.

- (11) Hotels and motels.
- (12) Microbreweries, microwineries and microdistilleries.
- (13) Contractors' offices, shops and yards.
- (14) Personal wireless service facilities.
- (15) Printing and publishing offices and shops.
- (16) Research and development facilities.
- D. Uses permitted by conditional use permit.
 - (1) Churches, synagogues, rectories and other religious uses and institutions.
 - (2) Veterinary clinics, animal training facilities, kennels, and animal hospitals with completely enclosed pens or kennels.
 - (3) Auction businesses and inventory facilities/yards.
 - (4) Vehicle and equipment rental agencies.
 - (5) Enclosed warehousing and distribution facilities.
 - (6) Large-scale solar farm (see § **270-166**).
[Added 5-5-2021 by L.L. No. 10-2021]

§ 270-20. RDT Research, Development, and Technology District.

The following apply to the RDT Research, Development and Technology District:

- A. Purpose: to accommodate emerging technology firms, manufacturing, assembly, warehousing and similar uses in areas where industrial and warehousing uses have historically located, and where infrastructure is already in place to serve such uses. Additionally, this zoning district is designed to accommodate certain commercial uses that complement research, development, and technology-related uses.
- B. Uses permitted by site plan review.
 - (1) Light assembly.
 - (2) Retail outlets associated with warehousing or light assembly.
 - (3) Offices.
 - (4) Enclosed warehousing and distribution facilities.
 - (5) Enclosed manufacturing.
 - (6) Vehicle and equipment rental agencies.
 - (7) Automobile dealerships.
 - (8) Automobile repair shops.
 - (9) Gasoline service stations.
 - (10) Car washes.

- (11) Food and beverage processing and distribution facilities.
- (12) Printing and publishing offices and shops.
- (13) Indoor, outdoor, and not-for-profit facilities.
- (14) Personal wireless service facilities.
- (15) Microbreweries, microwineries and microdistilleries.
- C. Uses permitted by conditional use permit which also require site plan review.
 - (1) Research and development facilities.
 - (2) Chip-fab plants and research facilities.
 - (3) Medical research facilities and institutions.
 - (4) Contractors' offices, shops and yards.
 - (5) Heavy machinery and transportation equipment sales, repair or storage.
 - (6) Freight/trucking terminals.
 - (7) Large-scale solar farm (see § **270-166**).
[Added 5-5-2021 by L.L. No. 10-2021]
- D. Dimensional regulations. The Table of Dimensional Regulations **is included at the end of this chapter**.

§ 270-21. LC Land Conservation District.

The following apply to the LC Land Conservation District:

- A. Purpose: to minimize the construction and placement of buildings and structures in areas that are sensitive to development due to the presence of regulated wetlands, flood-prone areas, steep slopes, etc.
- B. Uses permitted by right.
 - (1) Public and private parks, preserves and open spaces.
 - (2) Bird sanctuaries and wildlife refuges.
 - (3) Bike and pedestrian trails.
 - (4) Interactive structures associated with the above uses.
 - (5) Agricultural activities. (Permitted activities are restricted to those allowed by the New York State Department of Environmental Conservation permit, or similar activities permitted by state and/or federal agencies. Clear-cutting is not permitted.)
 - (6) Private docks. (Permitted activities are restricted to those allowed by the New York State Department of Environmental Conservation permit, or similar activities permitted by state and/or federal agencies. Clear-cutting is not permitted.)
 - (7) Commercial logging. (Permitted activities are restricted to those allowed by the New York State Department of Environmental Conservation permit, or similar activities permitted by state and/or federal agencies. Clear-cutting is not permitted.)

- C. Dimensional regulations. The only dimensional regulations that apply are those relating to accessory structures. The regulations pertaining to location, height, yards and site coverage of such accessory use in the Suburban Residential District shall apply.

§ 270-22. PPL Public Park Lands District.

The following apply in the PPL Public Park Lands District:

- A. Purpose: to identify publicly owned parks, preserves, recreation areas and open spaces, and to preserve and enhance those very features which led to the acquisition/establishment of these publicly owned properties.
- B. Uses permitted by right.
 - (1) Publicly owned parks, preserves, recreation areas and open spaces.
 - (2) Structures and facilities typically associated with such uses.
- C. Dimensional regulations. Dimensional regulations do not apply within the Public Park Lands District.

§ 270-23. RRC Riverfront Recreation/Commercial District.

The following apply in the RRC Riverfront Recreation/Commercial District:

- A. Purpose: to provide for public and privately sponsored water-dependent or water-enhanced development which promotes and supports recreational opportunities and commerce on the Mohawk River/Barge Canal and its adjacent shoreline, while at the same time preserving the riverfront environment as much as possible.
- B. Uses permitted by right.
 - (1) Agricultural activities/farms.
 - (2) Roadside produce stands (not exceeding a building footprint of 600 square feet).
 - (3) Bike paths.
- C. Uses permitted by site plan review.
 - (1) Marinas.
 - (2) Lodging facilities.
 - (3) Swimming facilities.
 - (4) Outdoor and not-for-profit recreation facilities.
 - (5) Campgrounds.
 - (6) RV parks.
 - (7) Restaurants.
[Amended 9-6-2023 by L.L. No. 4-2023]
- D. Uses permitted by conditional use permit which also require site plan review:
 - (1) RV parks.

- (2) Large-scale solar farm (see § **270-166**).
[Added 5-5-2021 by L.L. No. 10-2021]

E. Dimensional regulations. The Table of Dimensional Regulations **is included at the end of this chapter.**

§ 270-24. AZ Airport Zoning District.

The following apply to the AZ Airport Zoning District:

- A. Purpose: to provide for continued private and public use of the Schenectady airport and for potential expansion within the current boundaries of the airport. Further, the airport district has been established to encourage certain types of ancillary development, which is often associated with publicly owned airports.
- B. Uses permitted by right.
 - (1) Fixed-base operator facilities.
 - (2) Passenger terminals and associated parking lots.
 - (3) Aircraft fueling operations and facilities.
 - (4) Control towers, weather-monitoring stations and similar airport structures and uses.
 - (5) Offices in association with aviation activities.
 - (6) Charter operations.
 - (7) Aircraft hangars.
- C. Uses permitted by site plan review.
 - (1) Aviation- and space-related museums.
 - (2) Automobile rental operations.
 - (3) Cargo/freight movement operations.
- D. Uses permitted by conditional use permit.
[Added 5-5-2021 by L.L. No. 10-2021^[1]]
 - (1) Large-scale solar farm (see § **270-166**).
^[1] *Editor's Note: This local law also provided for the redesignation of former Subsection D as Subsection E.*
- E. Dimensional regulations. The Table of Dimensional Regulations **is included at the end of this chapter.**

§ 270-24.1. Overlay zoning districts.

[Amended 2-3-2021 by L.L. No. 3-2021; 2-3-2021 by L.L. No. 6-2021]

Four separate and distinct overlay zoning districts exist within the Town of Glenville. One is the Town Center Overlay District, second is the Adult Use Overlay District, third is the Storage Overlay, and fourth is the Large-Scale Solar Energy Farm Overlay.

- A. Town Center Overlay District. The regulations governing the Town Center Overlay District can be found in § **270-133** (Town Center Overlay District) within Article

XVIII (Commercial Development Design Guidelines) of this chapter.

B. Adult Use Overlay District.

(1) Purpose.

- (a) To provide for limited establishment of adult-oriented land uses, as well as other land uses which, by their very nature, have objectionable characteristics, while limiting their location and operation to an industrial area of Glenville where community impacts associated with these uses will be minimized.
- (b) To promote the health, safety, moral or general welfare of the community, including the protection and preservation of property, and the maintenance of property values.
- (c) It is further declared that the location of these uses, in regard to where our youth may regularly assemble, and the general atmosphere encompassing their operation, is of significant concern to the Town of Glenville. Therefore, these regulations shall accomplish the purpose of preventing and restricting accessibility to minors.

(2) Applicability. All applications for the land uses identified in Subsection **B(4)** below involving new building construction, changes in tenancy, exterior modifications/renovations, and additions are subject to the provisions of this section.

(3) Location of overlay district. Land uses permitted within the Adult Use Overlay District are limited to property and buildings within the boundaries of the overlay district, which in turn is delineated on the Town of Glenville Zoning Map. The Adult Use Overlay Zoning District is roughly a nineteen-acre rectangular area within the Glenville Business and Technology Park, along the northern boundary of the center portion of the Park, north of the 500-series of buildings and generally bounded by the railroad line to the north and Patent Parkway to the south.

(4) Uses allowed. All uses of land allowed within the underlying zoning district are permitted by site plan review and/or a conditional use permit, per the regulations of the underlying district. Additionally, the uses of land identified in Subsection **B(4)(a)** through **(e)** below are allowed within the Adult Use Overlay District only, subject to both site plan review and a conditional use permit. These uses are not permitted within any other zoning district of the Town of Glenville:

- (a) Adult uses, including but not limited to adult bookstores, adult theaters, and adult entertainment cabarets.
- (b) Pawn shops.
- (c) Secondhand dealers.
- (d) Cannabis or tobacco retail and consumption.
[Amended 9-6-2023 by L.L. No. 4-2023]
- (e) Massage parlors.
- (f) Marijuana dispensaries, including CBD products.
- (g) Hookah shops, cafes or bars.

(5) Minimum lot size, minimum yard setbacks, and all other dimensional requirements. All of the dimensional requirements of the underlying zoning

district apply to the overlay district uses defined in Subsection **B(4)** above, with the exception of the maximum height requirement, which is limited to 35 feet, regardless of the maximum height provision of the underlying zoning district.

- (6) Parking requirements. The off-street parking requirements for the uses identified in Subsection **B(4)** above are prescribed in Schedule A (Off-Street Parking Standards) of this chapter.^[1]

[1] *Editor's Note: Schedule A is included as an attachment to this chapter.*

- (7) Architectural and design requirements. The uses of land identified in Subsection **B(4)** above are subject to the design standards and guidelines for commercial establishments outside of the Town Center Overlay District, as articulated in §§ **270-134** to 270-137 of this chapter.
- (8) Signs.
 - (a) The uses of land identified in Subsection **B(4)** above are subject to the sign requirements of this chapter, including all applicable provisions of Article **IX** (Sign Control) and § 270-134C(6) of this chapter.
 - (b) All adult businesses shall display one exterior sign, in the vicinity of the customer entrance and clearly visible to those who enter the building at the customer entrance, giving notice that the premises is off limits to minors.
- (9) Visibility and display. No adult use shall be conducted in any manner that permits the observation of any material depicting or relating to sexual activities or anatomical areas customarily covered in clothing while in public from any public way or other property. This provision applies to any display, decoration, sign, banner, show window, screen or other building opening.
- (10) Application and review procedures. All uses of land identified in Subsection **B(4)** above subject to the provisions herein require both site plan review/approval and a conditional use permit. The application and review procedures for site plan review and conditional use permits are detailed in Articles **XVI** and **XVII** of this chapter, respectively.

C. Storage Overlay District.

- (1) Purpose.
 - (a) The intent of this subsection is to accommodate storage of automobiles associated with automobile dealerships, automobile towing operations and automobile rental operations and provide for self-storage. However, in accommodating such activities, it is the intent that there be no appreciable degradation of the character of the surrounding neighborhoods in which these activities occur.
 - (b) The implementation of this district shall be established as an overlay district which imposes additional criteria on the underlying zoning districts. The overlay district shall be a floating zone in the HC District as additional permitted uses provided the following conditions are met herein.
- (2) Specific regulations. Storage of automobiles for automobile dealerships, automobile towing operations, automobile rental operations, and self-storage are permitted by site plan review in the HC District as detailed in Article **XVI** of this chapter, provided the use meets all of the following conditions:
 - (a) Lot requirements. The site shall be a minimum of one acre, shall not be located in a floodplain or flood-prone area as defined by Chapter **151**,

Flood Damage Prevention, and shall not take primary access, nor provide for deliveries, from a predominantly residential street.

- (b) With the exception of automobile dealerships where vehicles are parked on the sales lot, parking lots will not be used to display vehicles for sale.
 - (c) For self-storage uses, all storage shall be inside a building.
 - (d) For automobile towing operations, the storage permitted is temporary only; no vehicle may be stored longer than 30 days. This use does not permit the site to be used as a junkyard or a salvage yard.
- (3) Materials to be submitted:
- (a) Site plan with all the items spelled out in the site plan checklist portion of the application packet included on the plan/map. (See § **270-106D**.)
 - (b) Additionally, the site plan must show all proposed improvements, including driveways, parking, fencing, landscaping, lighting, and area for snowstorage.
 - (c) Landscaping plans shall conform to Article **XIX** of this chapter.
 - (d) Stormwater pollution prevention plan. A stormwater pollution prevention plan (SWPPP) consistent with Article **XI** of this chapter shall be required for site plan approval. The SWPPP shall meet the performance, design criteria and standards set forth in Article **XI**. The approved site plan shall be consistent with the provisions of Article **XI**.
- (4) Existing vegetation. Existing on-site vegetation must be preserved to the maximum extent possible. No cutting of trees exceeding four inches in diameter at breast height (DBH) shall take place prior to the approval of the site plan.
- (5) Screening and landscaping. A combination of deciduous and evergreen tree plantings shall be required to screen the parking lot from nearby residential properties and on the perimeter of the parking lot. Landscaping requirements for landscaping within the parking lot shall conform to Article **XIX** of this chapter. Interior landscaped parking islands and peninsulas are encouraged, but where they are used, the preferred layout is that of larger islands and peninsulas instead of numerous small islands.
- (6) Paving and stormwater management.
- (a) The entire area used for parking must be paved. The use of permeable or porous pavement where practicable is preferred. Surfaces shall provide dust-free, all-weather material and will be graded and drained so as to dispose of all surface water without erosion, flooding, or negative impacts onto neighboring properties.
 - (b) All parking areas shall address stormwater on the site subject to stormwater requirements in Article **XI**. Where practical, stormwater management facilities should utilize green infrastructure best management practices (BMPs) to reduce impervious surfaces in the site design using on-site infiltration practices including rain gardens, vegetated swales, filter strips, stormwater planters, permeable pavement, and porous pavement. Further details about site infiltration practices can be found in the Capital District Regional Planning Commission Green Infrastructure Toolkit found at cdrpc.org.

- (7) Setbacks. Setbacks for self-storage units shall follow the setbacks for the underlying districts; however, in no case shall parking lots be located closer than 25 feet to any street right-of-way, nor closer than 10 feet to the rear or side property lines, and they may not be located any closer than 40 feet from the property line of residential properties. Additionally, with the exception of entrance and exit driveways, only green space and vegetation will be permitted within the twenty-five-foot strip/setback between the parking lot and street right-of-way and must conform to the requirements set forth in Article XIX.
- (8) Access management. Off-street parking should be designed to minimize traffic conflicts and utilize combined access drives where feasible.
- (a) There will be no more than one driveway on each street abutting the property.
 - (b) Driveways are not to exceed 30 feet in width.
 - (c) On corner lots, no driveways will be permitted within 50 feet of the intersection.
- (9) Lighting. Any lighting associated with parking areas will be directed into the parking area and away from adjacent properties and public rights-of-way.
- (10) Initiation of application. Any person or corporation having ownership of the property, or a possessory interest entitled to exclusive possession, or a contractual interest or future ownership, may file a request for use of the overlay district.
- (11) Preliminary application.
- (a) The applicant shall submit 23 copies of a preliminary site plan as required above with a written application for a change in district to a Storage Overlay District.
 - (b) Review by the Town Board.
 - [1] Findings required. The Town Board may recommend establishment of a Storage Overlay District, provided that the preliminary site plan establishes that:
 - [a] The uses proposed will not be detrimental to surrounding uses, but will have a beneficial effect, which could not be achieved in another district.
 - [b] Land surrounding the proposed development can be planned in coordination with the proposed development and that it be compatible in use.
 - [c] The proposed zoning change is in conformance with the general intent of this chapter and the Town of Glenville Comprehensive Plan.
 - [d] The proposed location does not create any adverse visual impacts to surrounding uses.
 - (c) Public hearing by the Town Board. The Town Board shall conduct a public hearing on the proposed change of zoning. The public hearing on the proposed zoning map amendment to the Storage Overlay District shall be given public notice as required for all zoning map amendments. After the public hearing, the zoning map may be amended, but such action shall only have the effect of granting permission for preparing site plans for

development of the specific proposal incorporating any conditions or modifications requested by the Town Board. The Town Board may deny approval of the zoning map amendment and any preliminary development plans.

- (d) Review by the Planning and Zoning Commission. Upon approval by the Town Board for amendment(s) to the zoning map, an application for said approved use through an overlay shall be submitted to the Planning and Zoning Commission for review and approval as required by Town Code.

D. Solar Energy Farm Overlay District.

- (1) Authority. The Solar Energy Farm Overlay District is adopted pursuant to §§ 261 to 263 of the Town Law and § 20 of the Municipal Home Rule Law of the State of New York, which authorize the Town to adopt zoning provisions that advance and protect the health, safety and welfare of the community, and, in accordance with the Town Law of New York State, "to make provision for, so far as conditions may permit, the accommodation of solar energy systems and equipment and access to sunlight necessary therefor."
- (2) Statement of purpose. The purpose of the Solar Energy Farm Overlay District is to allow installation of solar energy farms as a source of renewable energy that serves the community. It provides for the responsible development of parcels adequately sized that are located near substations but are otherwise difficult to develop. The development of solar energy farms requires consideration of the neighborhood's needs including but not limited to aesthetics, safety and private investment into community amenities, such as the park system. Furthermore, this overlay district is adopted to advance and protect the public health, safety, and welfare of the Town by creating regulations for the installation and use of solar energy generating systems and equipment, with the following objectives:
 - (a) To take advantage of a safe, abundant, renewable and nonpolluting energy resource;
 - (b) To foster low-impact development of sites that are otherwise difficult to develop located near existing substations;
 - (c) To increase employment and business development in the Town, to the extent reasonably practical, by furthering the installation of solar energy systems;
 - (d) To broaden the economic tax-base without further depleting or drawing on limited resources;
 - (e) To lessen the impacts of solar energy systems on environmental resources such as important agricultural lands, forests, wildlife and other protected resources; and
 - (f) To create synergy between solar and other community goals pursuant to the Comprehensive Plan, such as to responsibly create vibrant neighborhoods, revitalize business growth, manage land uses, create walkable communities, and encourage investment into Town services.
- (3) Definitions. Terms pertaining to the Solar Energy Farm Overlay District are defined in Town Code § **270-163**, Definitions.
- (4) Applicability.
 - (a) The requirements of this subsection shall apply to all solar energy farms permitted, installed, or modified in Town after the effective date of this

subsection, excluding general maintenance and repair.

- (b) Solar energy farms constructed or installed prior to the effective date of this subsection shall not be required to meet the requirements of this subsection.
- (c) Modifications to an existing solar energy farm that increase the solar energy farm area by more than 5% of the original area of the solar energy farm (exclusive of moving any fencing) shall be subject to this subsection.
- (d) All solar energy farms shall be designed, erected, and installed in accordance with all applicable codes, regulations, and industry standards as referenced in the New York State Uniform Fire Prevention and Building Code ("Building Code"), the New York State Energy Conservation Code ("Energy Code"), and the Town Code.

(5) General requirements.

- (a) A building permit shall be required for installation of all solar energy farms.
- (b) Local land use boards are encouraged to condition their approval of proposed developments on sites adjacent to solar energy farms so as to protect their access to sufficient sunlight to remain economically feasible over time.
- (c) Issuance of permits and approvals by the Town Board, Planning Zoning Commission (PZC) and Glenville Environmental Conservation Commission (GECC) shall include review pursuant to the State Environmental Quality Review Act ECL Article 8 and its implementing regulations at 6 NYCRR Part 617 ("SEQRA").
- (d) Fees and costs.

[1] For each application for a zoning change, site plan or subdivision, the Town of Glenville shall collect a fee from the applicant. The schedule of these fees is established by resolution of the Town Board and updated from time to time.^[2] In addition to the fees which are designed to reimburse the Town for expenses of review by the Planning and Zoning Commission, the Town Board may authorize the charging of plan-specific fees for engineering review, SEQRA review and legal review for site plans and subdivisions submitted to the Planning and Zoning Commission. No permit or certificate of any kind shall be issued for any parcel of land for which there are monies due to the Town of Glenville pursuant to this chapter and resolutions enacted hereunder. Said fees shall be subject to the provisions of Article V herein.

[2] *Editor's Note: See Ch. 139, Fees.*

[2] Solar farms public benefit fees. Solar farms constitute a unique land use that impacts the Town's ability to retain existing open space and occupies large swaths of green space. See site plan review fees in § 270-111 of Glenville's Zoning Code.

(6) Permitting requirements.

- (a) Initiation of application. Any person or corporation having ownership of the property, or a possessory interest entitled to exclusive possession, or a contractual interest or future ownership, may file a request for use of the overlay district.

(b) All solar energy farms are permitted through Glenville Environmental Conservation Commission (GECC) for Type I SEQR review, Town Board zoning change review and Planning and Zoning Commission (PZC) site plan review subject to requirements set forth in this subsection.

(c) Preliminary applications for the installation of solar energy farms shall be:

- [1] Reviewed by the Zoning Enforcement Officer for completeness. Applicants shall be advised within 10 business days of the completeness of their application or any deficiencies that must be addressed prior to substantive review;
- [2] Reviewed by the Glenville Environmental Conservation Commission (GECC) for a Type I SEQR review recommendation Planning and Zoning Commission;
- [3] Reviewed by the Town Board for consistency with the objectives of the overlay district;
- [4] Subject to a public hearing to hear all comments for and against the application. The Town Board of the Town shall have a notice printed in a newspaper of general circulation in the Town at least five days in advance of such hearing. Applicants shall have delivered the notice by first class mail to adjoining landowners or landowners within 200 feet of the property at least 10 days prior to such a hearing. Proof of mailing shall be provided to the Town Board at the public hearing;
- [5] Referred to the Schenectady County Planning Department pursuant to General Municipal Law § 239-m if required;
- [6] Approved or denied within 62 days of the public hearing. The Town Board shall take action on the application, which can include approval, approval with conditions, or denial. The sixty-two-day period may be extended upon consent by both the Town Board and applicant; and
- [7] Subject to site plan approval by the planning and Zoning Commission.

(d) Findings required for a zoning change:

- [1] The Town Board may recommend establishment of a Solar Overlay District, provided that the preliminary site plan establishes that:
 - [a] The uses proposed will not be detrimental to surrounding uses, but will have a beneficial effect, which could not be more effectively achieved in another district.
 - [b] The proposal preserves vegetation on the parcel and the parcel is otherwise difficult to develop.
 - [c] Land surrounding the proposed development can be planned in coordination with the proposed development and that it be compatible in use.
 - [d] The proposed zoning change is in conformance with the general intent of this chapter and the Town of Glenville Comprehensive Plan.
 - [e] The proposed location does not create substantially adverse visual impacts to surrounding uses.

- [2] Public hearing by the Town Board. The Town Board shall conduct a public hearing on the proposed change of zoning. The public hearing on the proposed zoning map amendment to the Solar Farm Overlay District shall be given public notice as required for all zoning map amendments. After the public hearing, the zoning map may be amended, but such action shall only have the effect of granting permission for preparing site plans for development of the specific proposal incorporating any conditions or modifications requested by the Town Board. The Town Board may deny approval of the zoning map amendment and any preliminary development plans.
- (e) Review by the Planning and Zoning Commission. Upon approval by the Town Board for amendment(s) to the zoning map, an application for said approved use through an overlay shall be submitted to the Planning and Zoning Commission for review and approval as required by Town Code.
- [1] Site plan application. Application for any solar energy farm requiring site plan approval shall include site plan submittal requirements listed in § **270-106A** to **E** in addition to the following information:
- [a] Property lines and physical features, including roads, for the project site.
 - [b] Proposed changes to the landscape of the site, grading, vegetation clearing and planting, exterior lighting, and screening vegetation or structures.
 - [c] A one- or three-line electrical diagram detailing the solar energy farm layout, solar collector installation, associated components, and electrical interconnection methods, with all National Electrical Code compliant disconnects and over current devices.
 - [d] A preliminary equipment specification sheet that documents all proposed solar panels, significant components, mounting systems, and inverters that are to be installed. A final equipment specification sheet shall be submitted prior to the issuance of building permit.
 - [e] Name, address, and contact information of proposed or potential system installer and the owner and/or operator of the solar energy farm. Such information of the final system installer shall be submitted prior to the issuance of building permit.
 - [f] Name, address, phone number, and signature of the project applicant, as well as all the property owners, demonstrating their consent to the application and the use of the property for the solar energy farm.
 - [g] Zoning district designation for the parcel(s) of land comprising the project site.
 - [h] Property operation and maintenance plan. Such plan shall describe continuing photovoltaic maintenance and property upkeep, such as mowing and trimming.
 - [i] Erosion and sediment control and stormwater management plans prepared to New York State Department of Environmental Conservation standards, if applicable, and to such standards as may be established by the Planning Board.

- [j] Prior to the issuance of the building permit or final approval by the Planning and Zoning Commission, but not required as part of the application, engineering documents must be signed and sealed by a New York State (NYS) Licensed Professional Engineer or NYS Registered Architect.
- [k] Standard for Planning and Zoning Commission review.
 - [i] Proximity to existing substation. Boundary line of a parcel proposed for a solar energy farm must be within 1/2 mile of an existing substation.
 - [ii] Lot size. The property on which the solar energy farm is placed shall be a minimum of 30 acres.
 - [iii] Setbacks. Solar energy farms shall comply with the setback requirements of the underlying zoning district for principal structures, except those solar energy farms adjacent to properties with existing housing or commercial structures shall sit 100 feet from the front, side and rear property lines.
 - [iv] Height. Solar energy farms shall comply with the building height limitations for principal structures of the underlying zoning district.
 - [v] Lot coverage. The following components of a solar energy farm shall be considered included in the calculations for lot coverage requirements:
 - [A] Foundation systems, typically consisting of but not limited to driven piles or monopoles or helical screws with or without small concrete collars.
 - [B] All mechanical equipment of the solar energy farm, including any pad-mounted structure for batteries, switchboard, transformers, or storage cells.
 - [C] Paved access roads servicing the solar energy farm.
 - [D] Lot coverage of the solar energy farm, as defined above, shall not exceed 50%.
 - [vi] Underground requirements. All on-site utility lines shall be placed underground to the extent feasible and as permitted by the serving utility, with the exception of the main service connection at the utility company right-of-way and any new interconnection equipment, including, without limitation any poles, with new easements and right-of-way.
 - [vii] Vehicular paths. Vehicular paths within the site shall be designed to minimize the extent of impervious materials and soil compaction.
 - [viii] Signage. No signage or graphic content shall be displayed on the solar energy farms except the manufacturer's name, equipment specification information, safety information, and twenty-four-hour emergency contact information. Said information shall be depicted within an area no more than eight square feet.

- [ix] As required by National Electric Code (NEC), disconnect and other emergency shutoff information shall be clearly displayed on a light reflective surface. A clearly visible warning sign concerning voltage shall be placed at the base of all pad-mounted transformers and substations.
- [x] Glare. All solar panels used in solar energy farms shall have antireflective coating(s).
- [xi] Lighting. Lighting of the solar energy farms shall be limited to that minimally required for safety and operational purposes and shall be reasonably shielded and downcast from abutting properties.
- [xii] Fencing requirements. All mechanical equipment, including any structure for storage batteries, shall be enclosed by a grounded seven-foot-high fence, as required by NEC, with a self-locking gate to prevent unauthorized access.
- [xiii] Screening and visibility. Solar energy farms shall have views minimized from adjacent properties to the extent reasonably practicable using architectural features, earth berms, landscaping, or other screening methods that will harmonize with the character of the property and surrounding area.
- [xiv] Applicants seeking to install solar energy farms shall be required to:
 - [A] Conduct a visual assessment of the visual impacts of the solar energy farm on public roadways and adjacent properties. At a minimum, a line-of-sight profile analysis shall be provided. Depending upon the scope and potential significance of the visual impacts, additional impact analyses, including for example a digital viewshed report, shall be required to be submitted by the applicant.
 - [B] Submit a screening and landscaping plan to show adequate measures to screen through landscaping, grading, fencing or other means so that views of solar panels and solar energy equipment shall be minimized as reasonably practical from public roadways and adjacent properties to the extent feasible.
 - {1} The screening and landscaping plan shall specify the locations, elevations, height, plant species, and/or materials that will comprise the structures, landscaping, and/or grading used to screen and/or mitigate any adverse aesthetic effects of the system. The landscaped screening shall be comprised of a minimum of one evergreen tree, at least six feet high at time of planting, plus two supplemental shrubs at the reasonable discretion of the Planning Zoning Commission, all planted within each 10 linear feet of the solar energy farm. Existing vegetation may be used to satisfy all or a portion of the required landscaped screening. The screening and landscaping plan shall specify

the locations, elevations, height, plant species, and/or materials that will comprise the structures, landscaping, and/or grading used to screening and/or mitigate any adverse aesthetic effects of the system, following the applicable rules and standards established by the Town Landscape Guide.

- {2} Tree cutting. No more than 30% of existing tree stands - measured by lot coverage of tree stands - should be removed.
- {3} Solar energy farm owners shall develop, implement, and maintain native vegetation to the extent practicable pursuant to a vegetation management plan by providing native perennial vegetation and foraging habitat beneficial to game birds, songbirds, and pollinators. To the extent practicable, when establishing perennial vegetation and beneficial foraging habitat, the owners shall use native plant species and seed mixes.

[xv] Agricultural resources. For projects located on agricultural lands:

[A] Any solar energy farm located on the areas that consist of prime farmland or farmland of statewide importance shall not exceed 50% lot coverage of the area of prime farmland or farmland of statewide importance on the parcel.

- {1} Any solar energy farm located on the areas that consist of prime farmland or farmland of statewide importance shall not exceed 50% of the entire lot; and/or
- {2} Solar energy farms on prime farmland or farmland of statewide importance shall be required to seed 20% of the total surface area of all solar panels on the lot with native perennial vegetation designed to attract pollinators.

[B] To the maximum extent practicable, solar energy farms located on prime farmland shall be constructed in accordance with the construction requirements of the New York State Department of Agriculture and Markets.

[xvi] Public benefit contribution (PBC) is required at a one-time rate of \$7,000 per acre of developed land to include all structures, equipment and infrastructure for each application. After one year if the project does not start, the applicant forfeits the PBC as it becomes nonrefundable and nontransferable. A subsequent applicant will be required to pay the PBC for proposed development of the same parcel.

[xvii] Ownership changes. If the owner or operator of the solar energy farm changes or the owner of the property changes, the special use permit shall remain in effect, provided that the successor owner or operator assumes in writing all of

the obligations of the special use permit, site plan approval, and decommissioning plan. A new owner or operator of the solar energy farm shall notify the Zoning Enforcement Officer of such change in ownership or operator within 30 days of the ownership change.

[xviii] The applicant has one year from site plan approval to complete work.

(7) Decommissioning.

- (a) Solar energy farms that have been abandoned and/or not producing electricity for a period of one year shall be removed at the owner's and/or operator's expense, which at the owner's option may come from any security made with the Town as set forth in Subsection **D(8)(b)** herein.
- (b) A decommissioning plan (see Appendix)^[3] signed by the owner and/or operator of the solar energy farm shall be submitted by the applicant, addressing the following:
 - [1] The cost of removing the solar energy farm.
 - [2] The time required to decommission and remove the solar energy farm and ancillary structures.
 - [3] The time required to repair any damage caused to the property by the installation and removal of the solar energy farm.
 - [4] Statement of disposal location.
- [3] *Editor's Note: Said appendix is included as an attachment to this chapter.*
- (c) The decommissioning plan shall be reviewed and approved by a third-party design professional. Such review shall be paid through an escrow account funded by money submitted to the Town from the applicant based on the third party's estimate of review costs.

(8) Security.

- (a) The deposit, executions, or filing with the Town Clerk of cash, bond, letter of credit or other form of security reasonably acceptable to the Town attorney, Comptroller and Town Board shall be in an amount sufficient to ensure the good faith performance of the terms and conditions of the permit issued pursuant hereto and to provide for the removal and restorations of the site subsequent to removal. The amount of the bond, security or letter of credit shall be 125% of the cost of removal of the solar energy farm and restoration of the property with an escalator of 2% annually for the life of the solar energy farm. The decommissioning amount shall be reduced by the amount of the estimated salvage value of the solar energy farm.
- (b) In the event of default upon performance of such conditions, after proper notice and expiration of any cure periods, the cash deposit, bond, or security shall be forfeited to the Town, which shall be entitled to maintain an action thereon. The cash deposit, bond, or security shall remain in full force and effect until restoration of the property as set forth in the decommissioning plan is completed.
- (c) In the event of default or abandonment of the solar energy farm, the solar energy farm shall be decommissioned as set forth in Subsection **D(10)(b)** and **(c)** herein.

(9) Safety.

- (a) Solar energy farms and solar energy equipment shall be certified under the applicable electrical and/or building codes as required.
- (b) Solar energy farms shall be maintained in good working order and in accordance with industry standards. Site access shall be maintained, including snow removal at a level acceptable to the local fire department and, if the solar energy farm is located in an ambulance district, the local ambulance corps.
- (c) If energy storage systems are included as part of the solar energy farm, they shall meet the requirements of any applicable fire prevention and building code when in use and, when no longer used, shall be disposed of in accordance with the laws and regulations of the Town and any applicable federal, state, or county laws or regulations.

(10) Permit time frame and abandonment.

- (a) The Town Board zoning change and PZC site plan approval for a solar energy farm shall be valid for a period of 12 months, provided that a building permit is issued for construction. In the event construction is not completed in accordance with the final site plan, as may have been amended and approved, as required by the PZC, within 12 months after approval, the applicant or the Town may extend the time to complete construction for 180 days. If the owner and/or operator fails to perform substantial construction after 12 months, the approvals shall expire.
 - (b) Upon cessation of electricity generation of a solar energy farm on a continuous basis for 12 months, the Town may notify and instruct the owner and/or operator of the solar energy farm to implement the decommissioning plan. The decommissioning plan must be completed within 360 days of notification.
 - (c) If the owner and/or operator fails to comply with decommissioning upon any abandonment, the Town may, at its discretion, utilize the bond and/or security for the removal of the solar energy farm and restoration of the site in accordance with the decommissioning plan.
- (11) Enforcement. Any violation of the requirements pertaining to the Solar Energy Farm Overlay District shall be subject to the same enforcement requirements, including the civil and criminal penalties, provided for in the zoning or land use regulations of Town.
- (12) Severability. The invalidity or unenforceability of any section, subsection, paragraph, sentence, clause, provision, or phrase of the aforementioned sections, as declared by the valid judgment of any court of competent jurisdiction to be unconstitutional, shall not affect the validity or enforceability of any other section, subsection, paragraph, sentence, clause, provision, or phrase, which shall remain in full force and effect.

§ 270-24.2. Freemans Bridge Road Corridor District.

A. Purpose. The purpose of the Freemans Bridge Road Corridor District is as follows:

- (1) To provide a destination gateway to Glenville, consistent with the Freemans Bridge Road Complete Streets Concept Plan, safely connecting the riverfront to Thomas Corners and the Town Center while providing accommodations for all users, including pedestrians, bicyclists, and vehicles.

- (2) Economic development will be encouraged through mixed use, research and technology, retail, and office development.

B. Objectives. The following are objectives for the Freemans Bridge Road Corridor District:

- (1) The size and scale of buildings in the Freemans Bridge Road Corridor should be complementary to a pedestrian- and bicycle-friendly environment.
- (2) The architectural character of new and renovated buildings should be harmonious with the surrounding area.
- (3) Improve pedestrian and bicycling infrastructure and conditions along the Corridor. Amenities shall be provided to promote pedestrian and bicycling usage.
- (4) Improve safety, better manage congestion, and implement access management along the Corridor.
- (5) Increase the potential for transit service to destinations along the Corridor.
- (6) Incorporate green infrastructure and sustainability into future development along the Corridor.
- (7) Provide streetscape amenities that give Freemans Bridge Road an identity.
- (8) Accommodate retail development, research and development, medical and office uses and foster economic development.

C. Uses permitted by site plan review.

- (1) Offices and professional offices.
- (2) Bed-and-breakfast establishments.
- (3) Hotels and motels.
- (4) Microbreweries, microwineries, and microdistilleries.
- (5) Sidepaths and bike paths.
- (6) Roadside produce stands.
- (7) Restaurants, food services, taverns, and nightclubs.
- (8) Restaurants.
[Amended 9-6-2023 by L.L. No. 4-2023]
- (9) Retail businesses.
- (10) Medical offices.
- (11) Personal wireless service facilities.
- (12) Personal and general services.
- (13) Indoor, outdoor, and not-for-profit recreation facilities.
- (14) Shopping centers.

- (15) (Reserved)^[1]

[1] *Editor's Note: Former Subsection C(15), Attached dwellings, was repealed 11-16-2022 by L.L. No. 8-2022.*

- (16) Publicly owned parks, recreation areas, and open spaces.

D. Uses permitted by conditional use permit which also require site plan review.
[Amended 11-16-2022 by L.L. No. 8-2022]

- (1) Veterinary clinics, animal training facilities and animal hospitals with completely enclosed pens or kennels.
- (2) Research and development facilities.
- (3) Hospital.
- (4) Craft production.
- (5) Marinas.

E. Dimensional requirements.

- (1) Front yard setback: 40 feet.
- (2) Minimum side yard setback (one side): 15 feet.
- (3) Rear yard setback: 30 feet.
- (4) Minimum lot size: 30,000 square feet. For the following specific uses:
 - (a) Mixed-use developments and attached dwellings: three-acre minimum;
 - (b) For research and development facilities: five-acre minimum;
 - (c) For shopping centers: five-acre minimum.
- (5) (Reserved)
- (6) Minimum lot width: 60 feet.
- (7) Minimum lot depth: 100 feet.
- (8) Maximum lot coverage: 35%.
- (9) Building height: 35 feet.

F. (Reserved)

G. Off-street parking. The off-street parking requirements outlined in Schedule A^[2] of this chapter apply to all land uses within the Freemans Bridge Road Corridor District.

- (1) Off-street parking is preferred to be located to the side and rear of the principal building and/or to the rear of the lot.
- (2) Access management. Off-street parking should be designed to minimize traffic conflicts and utilize combined access drives where feasible. Off-street parking areas shall be interconnected by access driveways for commercial and mixed-use developments and may be connected between residential and commercial uses.
- (3) Shared parking is encouraged, as detailed in Article X, Off-Street Parking and Loading.
- (4) Commercial developments shall supply bicycle racks at a rate of one bicycle parking stall per 15 parking spaces. Racks can consist of any size as long as they meet the total number of stalls required.
- (5) Landscaping shall be used on the perimeter of all parking lots with 10 or more spaces in an effort to soften the visual impact of parking lots from the street

and neighboring land uses, particularly from residential uses. Interior landscaped parking islands and peninsulas are allowed, but, where they are used, the preferred layout is that of larger islands and peninsulas instead of numerous small islands. Each development site and parking lot is unique, with proposed landscaping to be evaluated and determined by the Planning and Zoning Commission on a case-by-case basis.

- (6) Pedestrian interconnected walkways shall be in accordance with Subsection H.

[2] *Editor's Note: Schedule A is included as an attachment to this chapter.*

H. Pedestrian and bicycle accommodations and streetscape amenities.

- (1) Purpose. The purpose of these standards is to promote the pedestrian environment along the Freemans Bridge Road Corridor through the provision of appropriate amenities.
- (2) Applicability. The standards in this section are applicable to all actions proposed within the Freemans Bridge Road Corridor District that are subject to site plan review as specified in Article **XVI**. In addition to the materials regularly submitted for site plan review, the items discussed in Subsection **H(3)** below shall also be addressed.

- (3) The following criteria shall be utilized for site designs.

- (a) Sidewalks and sidepaths. Sidewalks and/or sidepaths are to be constructed and located pursuant to the Freemans Bridge Road Complete Streets Concept Plan. Wayfinding and directional signage should be provided.

- [1] A minimum of six feet in width shall be provided for sidewalks and 10 feet in width for sidepaths. Placement of such facilities shall be consistent with the Freemans Bridge Road Complete Streets Concept Plan.
- [2] Sidewalks and crosswalks shall be distinguished from vehicular surfaces using durable, low-maintenance surface materials such as pavers, bricks, stamped concrete, or scored concrete to enhance pedestrian safety and the area's identity.
- [3] A minimum of four feet for a grass strip shall be provided between the sidewalk/sidepath and the street edge.
- [4] Sidewalks shall be installed and connect to building entrances from parking areas, outdoor dining, transit stops/shelters and other destinations that generate pedestrian traffic.
- [5] Sidewalks shall connect to existing sidewalks on adjacent properties, and the sidewalk pattern shall continue across all driveways and come up to the sidewalk.

- I. Green infrastructure best management practices. Where practical, stormwater management facilities should utilize green infrastructure best management practices (BMPs) to reduce impervious surfaces in the site design using on-site infiltration practices, including rain gardens, vegetated swales, filter strips, stormwater planters, permeable pavement, and porous pavement. Further details about site infiltration practices can be found in the Capital District Regional Planning Commission Green Infrastructure Toolkit found at cdrpc.org.

- J. Additional design guidelines and standards. Design guidelines and standards shall comply with Article **XVIII**, Commercial Development Design Guidelines, of this

chapter.

- K. Landscaping. All landscaping shall comply with Article **XIX**, Landscaping, of this chapter.
- L. Sunset provision. With respect to the exclusion of laundromats as a permitted use, the Code shall be stayed until January 1, 2021, subject to the following limitations:
 - (1) Application shall be made and approved prior to the January 1, 2021, date with construction starting within one year of the approval date;
 - (2) The application shall be subject to site plan review; and
 - (3) Applications must meet dimensional regulations without variance.

Chapter 270. Zoning

Article XXII. Solar Energy

[Added 12-6-2017 by L.L. No. 12-2017]

§ 270-161. Authority.

This Zoning for Solar Energy Law is adopted pursuant to §§ 261 through 263 of the Town Law of the State of New York, which authorize the Town to adopt zoning provisions that advance and protect the health, safety, and welfare of the community, and "to make provision for, so far as conditions may permit, the accommodation of solar energy systems and equipment and access to sunlight necessary therefor."

§ 270-162. Statement of purpose.

- A. This solar energy article is adopted as a new article in Chapter **270** Zoning, of the Code of the Town of Glenville to advance and protect the public health, safety, and welfare of the Town of Glenville, including:
- (1) Taking advantage of a safe, abundant, renewable, and nonpolluting energy resource;
 - (2) Decreasing the cost of energy to the owners of government, commercial and residential properties, including single-family houses; and
 - (3) Increasing employment and business development in the region by furthering the installation of solar energy systems.

§ 270-163. Definitions.

As used in this article, the following terms shall have the meanings indicated:

BUILDING-INTEGRATED PHOTOVOLTAIC SYSTEM

A combination of photovoltaic building components integrated into any building envelope system such as vertical facades, including glass and other facade material, semitransparent skylight systems, roofing materials, and shading over windows.

GROUND-MOUNTED SOLAR ENERGY SYSTEM

A solar energy system that is anchored to the ground and attached to a pole or other mounting system, detached from any other structure for the primary purpose of producing electricity for on-site consumption.

LARGE-SCALE SOLAR ENERGY SYSTEM

A solar energy system that is ground-mounted and produces energy primarily for the purpose of off-site sale or consumption.

ROOF-MOUNTED SOLAR ENERGY SYSTEM

A solar panel system located on the roof of any legally permitted building or structure for the purpose of producing electricity for on-site or off-site consumption.

SOLAR ENERGY EQUIPMENT

Electrical energy storage devices, material, hardware, inverters, or other electrical equipment and conduit of photovoltaic devices associated with the production of electrical energy.

SOLAR ENERGY SYSTEM

An electrical generating system composed of a combination of both solar panels and solar energy equipment.

SOLAR PANEL

A photovoltaic device capable of collecting and converting solar energy into electrical energy.

§ 270-164. Applicability.

The requirements of this article shall apply to all solar energy systems installed or modified after its effective date, excluding general maintenance and repair and building-integrated photovoltaic systems.

§ 270-165. Solar as accessory uses or structures.

A. Roof-mounted solar energy systems.

- (1) Roof-mounted solar energy systems that use the electricity on site are permitted as an accessory use in all zoning districts when attached to any lawfully permitted building or structure.
- (2) Height. Solar energy systems shall not exceed the maximum height restrictions of the zoning district within which they are located and are provided the same height exemptions granted to building-mounted mechanical devices or equipment.
- (3) Aesthetics. Roof-mounted solar energy system installations shall incorporate, when feasible, the following design requirements:
 - (a) Panels must be mounted at the same angle as the roof's surface with a maximum distance of 18 inches between the roof and highest edge of the system and may not extend above a line 18 inches below the roof's peak nor below a line on the roof where the building wall would intersect with the roof.
- (4) Roof-mounted solar energy systems that use the energy on site shall be exempt from site plan review under the Zoning Code or other land use regulations.
- (5) Roof-mounted solar energy systems that are designed and/or operated for off-site use of the energy are permitted in General Business (GB), Highway Commercial (HC), Research, Development and Technology (RDT), Riverfront Recreation/Commercial (RRC) and Airport (AZ) Zones, subject to site plan review.

B. Ground-mounted solar energy systems.

- (1) Ground-mounted solar energy systems that use the electricity primarily on site are permitted as accessory structures in Highway Commercial (HC), Research, Development and Technology (RDT), Riverfront Recreation/Commercial (RRC) and Airport (AZ) Districts.
- (2) Height and setback. Ground-mounted solar energy systems shall adhere to the height and setback requirements of the underlying zoning district.

- (3) Lot coverage. Systems are limited to lot coverage of 25%. The surface area covered by ground-mounted solar panels shall be included in total lot coverage applicable in the zoning district.
- (4) All such systems shall be installed in the side or rear yards, subject to rear and side lot line setback distances.
- (5) Ground-mounted solar energy systems that use the electricity primarily on site shall require site plan review under the Zoning Code or other land use regulations.

C. Ground-mounted solar energy systems in the Rural Residential/Agricultural zoning district.
[Added 1-22-2020 by L.L. No. 1-2020]

- (1) Ground-mounted solar energy systems that generate no more than 110% of the annual on-site electrical load are permitted as accessory structures in the Rural Residential/Agricultural (RRA) District.
- (2) Height. The height of ground-mounted systems in the Rural Residential/Agricultural zoning district shall be 15 feet maximum as measured when solar panels and mounts are oriented at maximum tilt. Solar panels and mounts shall be located in a manner that reasonably minimizes shading of property to the north while still providing adequate sunlight access for the panels.
- (3) Location and setback. Ground-mounted systems in the Rural Residential/Agricultural district shall be installed in the rear yard, subject to the rear yard lot line setback requirements of the underlying zoning district.
- (4) Lot coverage. Systems in the Rural Residential/Agricultural zoning district are limited, regardless of lot size, to 1,000 square feet or 20% of the lot size, whichever is less. The surface area covered by ground-mounted solar panels shall be included in total lot coverage applicable in the zoning district.
- (5) Screening. A system shall be visibly screened through landscaping, grading, fencing, or a combination thereof, or by other means, so that views of solar energy systems shall be minimized as reasonably practical from public roadways and adjacent properties to the extent feasible. A screening and landscaping plan shall be submitted, at the time of building permit application, specifying the locations, elevations, height, plant species, and/or materials that will comprise the structures, landscaping, and/or grading used to screen year-round and/or mitigate any adverse aesthetic effects of the system. The landscaped screening shall be planted no closer than 10 linear feet from a system. Existing vegetation may be used to satisfy all or a portion of the required landscaped screening. The Town of Glenville Landscape Manual has a recommended planting list.
- (6) Decommissioning.
 - (a) Documentation verifying that the system is active shall be provided upon request by the Building Department.
 - (b) Systems either abandoned or not producing electricity for a period of 12 consecutive months shall be removed at the owner and/or operator's expense.
 - (c) The site shall be restored to as natural a condition as possible within six months of removal.
 - (d) A decommissioning plan signed by the owner and/or operator of the system shall be submitted by the applicant upon a form prepared by the Building Department, addressing, among other things, the following:
 - [1] The cost of removing the system;
 - [2] The time required to decommission and remove the system; and

- [3] The time required to repair any damage caused to the property by the installation and removal of the system.

§ 270-166. Approval standards for large-scale solar systems as conditional uses.

[Amended 4-21-2021 by L.L. No. 8-2021]

- A. Large-scale solar energy systems are permitted through the issuance of a conditional use permit within Highway Commercial, Research, Development and Technology, Riverfront Recreation/Commercial and Airport Districts, subject to the requirements set forth in this section, including site plan approval. Applications for the installation of a large-scale solar energy system shall be reviewed by the Zoning Officer and referred, with comments, to the Planning and Zoning Commission for its review and action, which can include approval, approval on conditions, and denial.
- B. Conditional use permit application requirements. For a conditional use permit application, the site plan application is to be used as supplemented by the following provisions:
- (1) If the property of the proposed project is to be leased, legal consent among all parties, specifying the use(s) of the land for the duration of the project, including easements and other agreements, shall be submitted.
 - (2) Blueprints showing the layout of the solar energy system, signed by a professional engineer or registered architect, shall be required.
 - (3) The equipment specification sheets shall be documented and submitted for all photovoltaic panels, significant components, mounting systems, and inverters that are to be installed.
 - (4) Property operation and maintenance plan. Such plan shall describe continuing photovoltaic maintenance and property upkeep, such as mowing and trimming.
 - (5) Decommissioning plan. To ensure the proper removal of large-scale solar energy systems, a decommissioning plan shall be submitted as part of the application. Compliance with this plan shall be made a condition of the issuance of a conditional use permit under this section. The decommissioning plan must specify that after the large-scale solar energy system can no longer be used, it shall be removed by the applicant or any subsequent owner. The plan shall demonstrate how the removal of all infrastructure and the remediation of soil and vegetation shall be conducted to return the parcel to its original state prior to construction. The plan shall also include an expected timeline for execution. A cost estimate detailing the projected cost of executing the decommissioning plan shall be prepared by a professional engineer or contractor retained by the Town at the sole cost and expense of the applicant. Cost estimations shall take into account inflation. Security, in an amount to cover the cost of the decommissioning plan, in a form acceptable to the Town Attorney, shall be posted by the applicant before approval can be granted. Removal of large-scale solar energy systems must be completed in accordance with the decommissioning plan. If the large-scale solar energy system is not decommissioned after being considered abandoned, the municipality may remove the system and restore the property and impose a lien on the property to cover these costs to the municipality.
- C. Conditional use permit standards.
- (1) Height and setback. Large-scale solar energy systems shall adhere to the height and setback requirements of the underlying zoning district.
 - (2) Lot size. Large-scale solar energy systems shall be located on lots with a minimum lot size of two acres and a maximum lot size of 10 acres.
 - (3) Lot coverage. A large-scale solar energy system that is ground-mounted shall not exceed lot coverage of 25% of the lot on which it is installed. The surface area covered by solar panels

shall be included in total lot coverage for all other purposes.

- (4) All large-scale solar energy systems shall be enclosed by fencing, a minimum of six feet high and a maximum of eight feet high, to prevent unauthorized access. Warning signs with the owner's contact information shall be placed on the entrance and perimeter of the fencing. The type of fencing shall be determined by the Planning and Zoning Commission after considering the nature, use and visual or aesthetic impacts on adjoining properties. The fencing and the system may be required to be further screened by landscaping to avoid adverse aesthetic impacts as determined by the PZC.
- (5) Any application under this section shall meet any substantive provisions contained in local site plan requirements in the Zoning Code that, in the judgment of the Planning and Zoning Commission, are applicable to the system being proposed.
- (6) The Planning and Zoning Commission may impose conditions on its approval of any conditional use permit under this section in order to enforce the standards referred to in this section or in order to discharge its obligations under the State Environmental Quality Review Act (SEQRA).^[1]

[1] *Editor's Note: See Environmental Conservation Law § 8-0101 et seq.*

§ 270-167. Abandonment and decommissioning.

Solar energy systems are considered abandoned after 90 days without electrical energy generation and must be removed from the property. Applications for extensions are reviewed by the Planning and Zoning Commission for a period of 90 days.

§ 270-168. Penalties for offenses.

Any violation of this solar energy article shall be subject to the same civil and criminal penalties provided for in the zoning regulations of the Town of Glenville.

§ 270-169. Severability.

The invalidity or unenforceability of any section, subsection, paragraph, sentence, clause, provision or phrase of the aforementioned sections as declared by the valid judgment of any court of competent jurisdiction to be unconstitutional shall not affect the validity or enforceability of any other section, subsection, paragraph, sentence, clause, provision or phrase, which shall remain in full force and effect.